

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Charis Jones	Team: Bias Squad #02	CCRB Case #: 202102770	☒ Force	☒ Discourt.	☒ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Friday, 03/12/2021 10:30 PM, Thursday, 06/02/2022 12:00 AM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 9/12/2022	Precinct: 43		
Date/Time CV Reported Thu, 04/22/2021 5:22 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 05/06/2021 3:22 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Daniel Ramos	17933	961145	043 PCT
2. SGT Robert Vassallo	04886	954397	043 PCT
3. PO Andre Brown	10601	966482	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . POM Daniel Ramos	Abuse: Police Officer Daniel Ramos stopped the vehicle in which § 87(2)(b) § 87(2)(b) and an individual were occupants.	§ 87(2)(b)
B . SGT Robert Vassallo	Abuse: Sergeant Robert Vassallo stopped the vehicle in which § 87(2)(b) § 87(2)(b) and an individual were occupants.	§ 87(2)(b)
C . PO Andre Brown	Abuse: Police Officer Andre Brown stopped the vehicle in which § 87(2)(b) § 87(2)(b) and an individual were occupants.	§ 87(2)(b)
D . PO Andre Brown	Abuse: Police Officer Andre Brown searched § 87(2)(b)	§ 87(2)(b)
E . POM Daniel Ramos	Abuse: Police Officer Daniel Ramos searched § 87(2)(b)	§ 87(2)(b)
F . SGT Robert Vassallo	Abuse: Sergeant Robert Vassallo searched an individual.	§ 87(2)(b)
G . PO Andre Brown	Abuse: Police Officer Andre Brown frisked § 87(2)(b)	§ 87(2)(b)
H . POM Daniel Ramos	Abuse: Police Officer Daniel Ramos frisked § 87(2)(b)	§ 87(2)(b)
I . SGT Robert Vassallo	Abuse: Sergeant Robert Vassallo frisked an individual.	§ 87(2)(b)
J . POM Daniel Ramos	Abuse: Police Officer Daniel Ramos searched the vehicle in which § 87(2)(b) was an occupant.	§ 87(2)(b)
K . PO Andre Brown	Off. Language: Police Officer Andre Brown made remarks based upon § 87(2)(b) perceived sexual orientation.	§ 87(2)(b)
L . PO Andre Brown	Discourtesy: Police Officer Andre Brown spoke discourteously to § 87(2)(b)	§ 87(2)(b)
M . PO Andre Brown	Off. Language: Police Officer Andre Brown made remarks based upon § 87(2)(b) perceived disability.	§ 87(2)(b)
N . PO Andre Brown	Discourtesy: Police Officer Andre Brown spoke discourteously to § 87(2)(b)	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
O . PO Andre Brown	Abuse: Police Officer Andre Brown interfered with § 87(2)(b) use of a recording device.	
P . PO Andre Brown	Abuse: Police Officer Andre Brown threatened to damage/seize § 87(2)(b) property.	
Q . PO Andre Brown	Force: Police Officer Andre Brown used physical force against § 87(2)(b)	
R . SGT Robert Vassallo	Abuse: Sergeant Robert Vassallo interfered with an individual's use of a recording device.	
S . PO Andre Brown	Untruthful Stmt.: Police Officer Andre Brown provided a false official statement to the CCRB.	
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Case Summary

On April 22, 2021, § 87(2)(b) filed this complaint via the CCRB's call-processing system on behalf of himself, § 87(2)(b) and an unidentified individual. The complaint was received on May 6, 2022.

On March 12, 2021, at approximately 10:30 p.m., Police Officer Daniel Ramos, Police Officer Andre Brown, and Sergeant Robert Vassallo, all of the 43rd Precinct, stopped the vehicle in which § 87(2)(b) § 87(2)(b) and the unidentified individual § 87(2)(b) were occupants in front of § 87(2)(b) in the Bronx (**Allegations A-C: Abuse of Authority, § 87(2)(g)** PO Brown allegedly searched § 87(2)(b) PO Ramos allegedly searched § 87(2)(b) and Sgt. Vassallo allegedly searched § 87(2)(b) (**Allegations D-F: Abuse of Authority, § 87(2)(g)** PO Brown frisked § 87(2)(b) PO Ramos frisked § 87(2)(b) Sgt. Vassallo frisked § 87(2)(b) (**Allegations G-I: Abuse of Authority, § 87(2)(g)** PO Ramos searched the vehicle in which § 87(2)(b) § 87(2)(b) and § 87(2)(b) were occupants (**Allegation J: Abuse of Authority, § 87(2)(g)** PO Brown made remarks to § 87(2)(b) based upon § 87(2)(b) perceived sexual orientation and disability (**Allegation K: Offensive Language, § 87(2)(g)** (**Allegation L: Discourtesy, § 87(2)(g)** (**Allegation M: Offensive Language, subsumed in Allegation K)** (**Allegation N: Discourtesy, subsumed in Allegation L)**. § 87(2)(g) PO Brown interfered with § 87(2)(b) recording device (**Allegation O: Abuse of Authority, § 87(2)(g)** PO Brown threatened to damage § 87(2)(b) property (**Allegation P: Abuse of Authority, § 87(2)(g)** PO Brown allegedly pushed § 87(2)(b) towards his vehicle (**Allegation Q: Force, § 87(2)(g)** Sgt. Vassallo interfered with an individual's recording device (**Allegation R: Abuse of Authority, § 87(2)(g)**

PO Brown provided a false official statement to the CCRB (**Allegation S: Untruthful Statement, § 87(2)(g)**

§ 87(2)(g), § 87(4-b)

No arrests were made or summons issued as a result of this incident (Board Review 01).

The investigation obtained PO Brown, PO Ramos, and Sgt. Vassallo's the body worn camera (BWC) videos, which captured the entire incident, respectively (Board Review 02-04).

Cellphone video provided to the investigation by § 87(2)(b) captured a portion of this incident (Board Review 23).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Daniel Ramos stopped the vehicle in which § 87(2)(b) § 87(2)(b) and an individual were occupants.

Allegation (B) Abuse of Authority: Sergeant Robert Vassallo stopped the vehicle in which § 87(2)(b) § 87(2)(b) and an individual were occupants.

Allegation (C) Abuse of Authority: Police Officer ANDRE BROWN stopped the vehicle in which § 87(2)(b) § 87(2)(b) were occupants.

§ 87(2)(b) (Board Review 5) testified that he was double parked in his rented Volkswagen in front of § 87(2)(b) in the Bronx with § 87(2)(b) who was in the front passenger seat. § 87(2)(b) called § 87(2)(b) who lived inside of § 87(2)(b) to see if he wanted to come outside and meet them. § 87(2)(b) friend eventually exited § 87(2)(b) and got into the back

passenger seat of § 87(2)(b) vehicle. § 87(2)(b) observed officers in an unmarked Ford Taurus drive past them and proceed to the intersection of White Plains Road and Lafayette Avenue. The vehicle made a U-turn at the intersection and stopped behind § 87(2)(b) vehicle.

PO Brown approached § 87(2)(b) on the driver's side and immediately ordered him to get out of the vehicle approximately three times. § 87(2)(b) began to record the interaction and PO Brown ordered him to get off his phone. § 87(2)(b) asked PO Ramos why he needed to get out of the car. PO Ramos, who stood near the back-passenger seat, told § 87(2)(b) that they were being stopped because § 87(2)(b) was not wearing a seat belt.

The investigation was unable to obtain statements from § 87(2)(b) or § 87(2)(b) § 87(2)(b) declined to provide names and contact numbers for § 87(2)(b) and § 87(2)(b). The investigation identified § 87(2)(b) based on information obtained from the 43rd Precinct Command Log (Board Review 06). The CCRB conducted public database searches for § 87(2)(b) and was unable to locate and contact him (Board Reviews 07, 08). The investigation was unable to determine the identity of § 87(2)(b).

PO Brown (Board Review 11) testified that he was operating his police vehicle when he, PO Ramos, and Sgt. Vassallo stopped § 87(2)(b) for a traffic violation, although he could not recall what the specific infraction was or whose decision it was to stop the vehicle.

PO Ramos (Board Review 09) testified that they were at a stop light at the intersection of White Plains Road and another street (PO Ramos could not recall which one) when PO Ramos observed § 87(2)(b) vehicle stopped next to them with three occupants inside. During this time, PO Ramos observed that § 87(2)(b) who was seated in the back passenger seat, was not wearing a seat belt. The light turned green, and § 87(2)(b) vehicle proceeded to drive forward and in front of the police vehicle. One § 87(2)(b) vehicle was approximately one car length ahead, PO Brown deployed the police vehicle's lights. § 87(2)(b) drove a little further before coming to a complete stop PO Ramos did not recall if PO Brown or Sgt. Vassallo observed the infraction and he did not recall if there was any conversation amongst himself or the other officers about the infraction. It was PO Ramos' decision to stop the vehicle because he alerted PO Brown and Sgt. Vassallo to the fact that § 87(2)(b) was not wearing a seat belt.

Sgt. Vassallo's (Board Review 10, 22) testimony was generally consistent with PO Ramos' regarding the reason for the stop and stated that it was a collective decision to stop § 87(2)(b).

PO Brown, PO Ramos, and Sgt. Vassallo testified that no summons was issued for the VTL because § 87(2)(b) was taken into custody (Board Reviews 09-11, 24).

PO Ramos' BWC, from 00:55 to 01:10, shows that § 87(2)(b) vehicle was on and double parked with the hazard lights when PO Ramos initially approached (Board Review 03). PO Ramos approaches the back passenger side of the vehicle where § 87(2)(b) is seated. It is unclear whether § 87(2)(b) has his seat belt on.

New York State Vehicle Traffic Law Section 1229-C requires all motor vehicle passengers ages 8 and older to wear seat belts, regardless of seating position (Board Review 12).

The investigation was unable to obtain a statement from § 87(2)(b) regarding this incident. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation (D) Abuse of Authority: Police Officer ANDRE BROWN searched § 87(2)(b)
Allegation (E) Abuse of Authority: Police Officer Daniel Ramos searched § 87(2)(b)
Allegation (F) Abuse of Authority: Sergeant Robert Vassallo searched an individual.
Allegation (G) Abuse of Authority: Police Officer ANDRE BROWN frisked § 87(2)(b)
Allegation (H) Abuse of Authority: Police Officer Daniel Ramos frisked § 87(2)(b)
Allegation (I) Abuse of Authority: Sergeant Robert Vassallo frisked an individual.
Allegation (J) Abuse of Authority: Police Officer Daniel Ramos searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) (Board Review 05) testified that PO Brown opened the driver's side door and he exited the vehicle. PO Brown searched § 87(2)(b) sweater pockets and pants pockets, which held his keys, some candy, loose change, and his phone. Simultaneously, § 87(2)(b) exited the front passenger door, stood outside next to the door, and was searched by Sgt. Vassallo. § 87(2)(b) did not see where on § 87(2)(b) body Sgt. Vassallo searched. § 87(2)(b) exited the back-passenger seat, stood next to the back-passenger door, and was searched by PO Ramos. After PO Brown searched § 87(2)(b) he instructed § 87(2)(b) to stand at the rear of the vehicle. § 87(2)(b) walked to the rear of the vehicle where § 87(2)(b) and § 87(2)(b) also stood. PO Ramos proceeded to search the front seat area and the back seat area of § 87(2)(b) vehicle.

Although not alleged by § 87(2)(b) BWC footage captures PO Brown frisking § 87(2)(b) PO Ramos frisking § 87(2)(b) and Sgt. Vassallo frisking § 87(2)(b)

PO Brown's BWC footage captures his interaction with § 87(2)(b) (Board Review 02). At 00:52, PO Brown exits the vehicle and approaches § 87(2)(b) vehicle, which is was on with its hazard lights deployed, on the driver's side. § 87(2)(b) is seated in the back passenger seat, § 87(2)(b) is seated in the front passenger seat, and § 87(2)(b) is in the driver's seat. § 87(2)(b) is holding his phone out of the window. At 01:06, PO Brown says, "You know what you got pulled over for? You're so happy to see us." At 01:10, PO Brown shines his flashlight into the driver's seat and asks § 87(2)(b) if he has his license on him. § 87(2)(b) responds, "Yo, Mo." PO Brown says, "I am not Mo. Get off your phone and give me your license." § 87(2)(b) looks down at his phone and says, "Gangsta, gangsta, gangsta, though." PO Brown opens the driver side door. At 01:21, § 87(2)(b) tells PO. Brown that he had just been stopped by the police. At 01:22, PO Brown says, "I told you to give me your ID, right? I don't care about your phone." § 87(2)(b) is not captured providing his identification to PO Brown. At 01:32, PO Brown orders § 87(2)(b) to turn the car off. At 01:39, § 87(2)(b) says, "Hold on yo, what did I get pulled over for?" PO Brown orders § 87(2)(b) to step out of the vehicle twice, consecutively. PO Ramos, who is standing behind PO Brown, points at § 87(2)(b) in the back passenger seat and says that he was not wearing a seat belt. At 01:47, the back passenger seat opens. It is unclear if PO Ramos or § 87(2)(b) open the door. At 01:51, § 87(2)(b) exits the driver side with his hands up. PO Brown frisks the pockets of § 87(2)(b) sweatshirt as § 87(2)(b) faces him. At 01:57, § 87(2)(b) turns around and faces the vehicle. At 01:58, PO Brown frisks the lower part of § 87(2)(b) body. It is unclear whether PO Brown searches § 87(2)(b) because his camera is obscured by the back of § 87(2)(b) sweatshirt. At 01:58, PO Brown says, "Keep your hands up. Get off your stupid phone." At 02:02, PO Brown frisks § 87(2)(b) right and left leg. PO Brown does not make any mention about observing or detecting marijuana at any point.

PO Ramos' BWC footage, which is 05:45 minutes in length, captures his interaction with § 87(2)(b) and his search of the vehicle (Board Review 03). At 00:53, PO Brown walks in front of PO Ramos towards the driver's side of § 87(2)(b) vehicle, which is double parked and on with its hazard lights deployed. At 01:00 § 87(2)(b) opens the back passenger door. PO Ramos says, while

standing near the back passenger area on the driver's side, says, "What's up, man?" PO Ramos makes another inaudible statement. PO Brown is captured standing at the driver side window, which is down. PO Ramos closes the back passenger door. At 01:31, § 87(2)(b) hands PO Brown his license. PO Brown hands PO Ramos § 87(2)(b) identification. At 01:39, § 87(2)(b) asks why he got pulled over. PO Ramos points to § 87(2)(b) in the back passenger seat and says, "He has to have his seat belt on." At 01:53, § 87(2)(b) steps out of the vehicle, laughing, and puts his hands up. From 01:53 to 02:08, PO Brown frisks § 87(2)(b) person while he stands near the driver side door. PO Brown does not search § 87(2)(b). At 02:14, § 87(2)(b) walks to the rear of the vehicle and PO Brown follows. At 02:20, PO Brown opens the back passenger door. § 87(2)(b) remains seated and is holding a plastic bag. PO Ramos asks § 87(2)(b) to put the bag down. § 87(2)(b) puts the bag down and steps out of the vehicle. PO Ramos asks § 87(2)(b) if he has anything sharp on his person, to which § 87(2)(b) responds, "No." From 02:31 to 02:46, PO Ramos frisks § 87(2)(b) chest area, waistband area, and both of his legs. PO Ramos does not search § 87(2)(b) person. At 03:37, PO Ramos opens the driver side door and shines his flashlight into the side door pocket. PO Ramos proceeds to search the floor area of the driver's seat as well as the center console. At 03:53, PO Ramos opens the back passenger door behind the driver's seat and searches the back passenger area. At 04:06, PO Ramos takes § 87(2)(b) key out of the car's ignition. At 04:17, PO Ramos opens the front passenger door and shines his flashlight into the front passenger seat area. PO Ramos opens the glove compartment, searches it, and then searches the floor of the front passenger seat area. At 04:26, PO Ramos opens the back passenger door behind the front passenger seat. Nothing is recovered from the vehicle search. Neither PO Ramos, PO Brown, nor Sgt. Vassallo make any mention of marijuana during the recording.

Sgt. Vassallo's BWC footage, which is 05:44 minutes in length, captures his interaction with § 87(2)(b) (Board Review 04). At 00:55, Sgt. Vassallo approaches § 87(2)(b) vehicle on the passenger side. From 00:56, to 02:47, PO Brown and PO Ramos are captured frisking § 87(2)(b) and § 87(2)(b) on the opposite side of the vehicle. At 02:48, Sgt. Vassallo opens the front passenger door. § 87(2)(b) immediately steps out while holding his phone. Sgt. Vassallo orders § 87(2)(b) to put his phone in his pocket or to leave it in the car. Once he is outside, § 87(2)(b) turns around so that his back is to Sgt. Vassallo. Sgt. Vassallo asks § 87(2)(b) if he has anything sharp on his person, to which § 87(2)(b) responds, "No." From 02:58 to 03:25, Sgt. Vassallo frisks § 87(2)(b) waistband area and both of his legs. Sgt. Vassallo does not search § 87(2)(b). Sgt. Vassallo makes no mention of observing or detecting the odor of marijuana at any point.

PO Brown (Board Review 11) testified that he approached § 87(2)(b) vehicle on the driver's side to retrieve § 87(2)(b) identification and registration. PO Brown did not recall where PO Ramos or Sgt. Vassallo approached. PO Brown ordered § 87(2)(b) to produce his identification. § 87(2)(b) appeared to be "very focused on his phone" and did not immediately provide PO Brown with his identification. PO Brown did not recall any specific statements made by § 87(2)(b) but stated that he may have mentioned that he had been stopped by the police recently. PO Brown repeatedly asked § 87(2)(b) for his identification and § 87(2)(b) continued to speak about how he had just been stopped. § 87(2)(b) was also simultaneously recording the interaction on his cellphone. PO Brown asked § 87(2)(b) to step out because he "either saw weed in the car or smelled weed in the car." PO Brown did not recall if he observed marijuana or if he detected the odor of it but recalled becoming aware that marijuana was present. PO Brown received training at the Police Academy on how to identify the odor of marijuana. Through his experience in conducting vehicle stops and effecting arrests where the odor of marijuana was present, PO Brown was able to detect the difference in odor between burnt and unburnt marijuana, but did not recall what it was in this instance. Once § 87(2)(b) was outside of the vehicle, PO Brown frisked § 87(2)(b) for weapons because it was procedure to do so during a vehicle stop when someone steps out. PO Brown did not believe § 87(2)(b) was armed. The odor of marijuana also affected PO Brown's frisk of § 87(2)(b) because it "gave him the

right to do so.” PO Brown did not observe any bulges or concealed items on § 87(2)(b) person. Aside from detecting the odor of marijuana, PO Brown did not suspect § 87(2)(b) had engaged in any criminal activity. PO Brown frisked § 87(2)(b) waist area. Nothing was recovered. PO Brown did not search § 87(2)(b) at any point.

PO Ramos (Board Review 09) testified that before § 87(2)(b) pulled over, he observed § 87(2)(b) who was seated in the back passenger seat of the vehicle, look back at the police vehicle and lower his head. PO Ramos thought that § 87(2)(b) may have been hiding something at that time. § 87(2)(b) stopped his vehicle approximately one minute after PO Brown deployed the vehicle’s lights. PO Ramos exited the vehicle, crossed the front of it, and approached § 87(2)(b) vehicle on the driver’s side behind PO Brown. Sgt. Vassallo approached § 87(2)(b) vehicle on the passenger side. At the time he approached, PO Ramos intended to get § 87(2)(b) identification so that he could issue him a summons for not wearing a seat belt. While PO Ramos walked towards the back passenger area on the driver’s side, § 87(2)(b) opened the back passenger door, stuck his head out, and placed one foot outside the vehicle. Once the door was opened, PO Ramos immediately detected a strong smell of burnt marijuana emanating from within the vehicle. PO Ramos was trained on how to detect the odor of marijuana during his time at the Police Academy between January and June of 2016. PO Ramos also received similar training in 2019 from Street Narcotics Enforcement Unit (“SNEU”), where he learned to identify the different types of marijuana; vegetative, burning, or a mixture of both. PO Ramos has made approximately 10 arrests and assisted in 20-30 arrests in which the odor of marijuana was present and/or involved. PO Ramos did not have any conversation about the odor of marijuana with Sgt. Vassallo or PO Brown and they did not inform PO Ramos that they had detected the odor as well. PO Ramos stated that he had been working with PO Brown and Sgt. Vassallo for a while, that they knew each other’s “routine,” and that he assumed PO Brown smelled the marijuana because he subsequently asked § 87(2)(b) to step out of the vehicle. PO Ramos did not speak to any of the individuals about the smell of marijuana. PO Ramos said to § 87(2)(b) “Excuse me, Sir. Can you sit back?” § 87(2)(b) turned so that he was inside of the vehicle and PO Ramos shut the door. § 87(2)(b) and § 87(2)(b) talked to one another; however, PO Ramos could not recall what they said. PO Ramos stated that based on his experience, it was abnormal for a person to attempt to get out of the vehicle during a vehicle stop. PO Ramos could not tell where from within the vehicle the odor was emanating. During this time, PO Brown spoke to § 87(2)(b) who was seated in the driver’s seat. PO Brown did not overhear their conversation. § 87(2)(b) said to § 87(2)(b) “Hurry up, I am just trying to eat my food.” PO Ramos eventually asked § 87(2)(b) to step out of the vehicle because he wanted to frisk § 87(2)(b) for his own safety, for marijuana, and because he “did not like the way” § 87(2)(b) attempted to exit the vehicle when PO Ramos initially approached. PO Ramos was concerned that § 87(2)(b) may have had a weapon, specifically a gun, because he looked back at him prior to the stop and tried to leave the vehicle when PO Ramos approached. PO Ramos did not observe any bulges or concealed items on § 87(2)(b) person. Once § 87(2)(b) stepped out of the vehicle, PO Ramos frisked § 87(2)(b) waist area and chest area. Nothing was recovered from the frisk. PO Ramos did not search § 87(2)(b) person. PO Brown observed PO Ramos frisk § 87(2)(b) near the driver’s side of the vehicle. PO Ramos did not recall where on § 87(2)(b) body PO Brown frisked. PO Ramos did not observe PO Brown search § 87(2)(b) PO Ramos subsequently searched the driver’s side of the vehicle, the front passenger side, the glove compartment, the back passenger side behind the front passenger side of the vehicle, and the trunk because he was trying to determine where the odor of marijuana was coming from. PO Ramos did not recover anything from his search of the vehicle.

Sgt. Vassallo’s (Board Review 10, 22) testimony was generally consistent with PO Ramos’ regarding the reason for the stop and stated that it was a collective decision to stop § 87(2)(b) Sgt. Vassallo exited the vehicle and approached on the passenger side. As Sgt. Vassallo approached, he

Allegation (M) Offensive Language: Police Officer ANDRE BROWN made remarks based upon § 87(2)(b) perceived disability.

Allegation (N) Discourtesy: Police Officer ANDRE BROWN spoke discourteously to § 87(2)(b).

Allegations K-N were captured on BWC and not alleged by the civilian.

PO Brown's BWC captured his interaction with § 87(2)(b) (Board Review 02). At 02:02, § 87(2)(b) makes an inaudible statement right after PO Brown finishes frisking him. At 02:08, PO Brown responds, "That's gay. That's gay." It is unclear what PO Brown is making that comment in reference to. § 87(2)(b) walks to the back of his vehicle and PO Brown follows him. At 04:14, PO Brown is standing in front of § 87(2)(b) and § 87(2)(b) while § 87(2)(b) talks to Sgt. Vassallo on the right side of the screen at the rear of the vehicle. PO Brown says, "That's just gay" to § 87(2)(b). It is unclear what PO Brown making this statement about. At 04:40, PO Ramos tells § 87(2)(b) he can have a seat in the vehicle twice. After the second time, § 87(2)(b) begins walking back to the driver's side. PO Brown says, "He's a little slow" (referring to § 87(2)(b)). § 87(2)(b) says, "Suck my dick," to which PO Brown responds, "Yeah that's gay."

PO Ramos's BWC footage captures a segment of this portion of the incident from a different angle (Board Review 02). At 04:36, PO Ramos approaches § 87(2)(b) who is standing at the rear of the vehicle and tells him that he can have a seat. § 87(2)(b) does not immediately respond and appears to be looking away from the officers. PO Ramos waves his arms in front of § 87(2)(b) to get his attention and tells him again that he can have a seat. At 04:40, PO Brown makes a spinning gesture towards his head with his pointer finger and says, "He's a little slow" (referring to § 87(2)(b)). § 87(2)(b) says, "Suck my dick," and PO Brown responds, "Yeah that's gay."

PO Brown (Board Review 11) did not recall saying, "That's gay" four separate times or "He's a little slow" to § 87(2)(b). During the interview, PO Brown was shown his BWC footage from 01:55 to 02:47, which showed the above portion of the incident. After reviewing the footage, PO Brown did not wish to amend his testimony in any way. PO Brown testified that he heard the statement being made but did not know if it was coming from his voice and he did not know if it was the voice of PO Ramos or Sgt. Vassallo either. PO Brown maintained that he did not recall making that statement.

PO Brown was shown his BWC footage a second time from 03:28 to 04:15, which captured PO Brown saying, "That's just gay" again (Board Reviews 09, 02). After reviewing the footage, PO Brown did not wish to amend his testimony and stated that "he could not say" if it was himself who made that statement. PO Brown was unsure if it was the voice of PO Ramos or Sgt. Vassallo either. At 04:40 of PO Brown's BWC footage, PO Brown is captured saying, "He's a little slow (referring to § 87(2)(b))." Reviewing the footage did not refresh PO Brown's memory of this portion of the incident and he could not identify the voice as his own. PO Brown did not know for certain if it was the voice of PO Ramos or Sgt. Vassallo either. At 04:41 of PO Brown's footage, PO Brown is captured saying "That's gay" a fourth time. After reviewing the footage, PO Brown did not wish to amend his testimony and stated that he did not know if the voice making the statement was his.

PO Brown was shown his BWC footage a third time from 01:42 to 02:09, for voice identification purposes (Board Reviews 09, 02). This portion of the footage captures PO Brown ordering § 87(2)(b) to put his hands up, to get off his phone, and his frisk of § 87(2)(b). After he finishes frisking § 87(2)(b), § 87(2)(b) steps to the rear of the vehicle. Simultaneously, PO Brown says, "That's gay, that's gay" two subsequent times. After reviewing the footage, PO Brown did not wish to amend his testimony regarding the statements made.

PO Ramos and Sgt. Vassallo (Board Reviews 09, 10, 24) did not recall hearing PO Brown say, “That’s gay,” or refer to § 87(2)(b) as “slow” at any point.

NYPD Patrol Guide 203-10 prohibits member of service from using discourteous or disrespectful remarks regarding another person’s sexual orientation or disability (Board Review 15).

NYPD Administrative Guide 304-10 states that circumstances in which false or misleading official statements are made include, but are not limited to, verbal statements made pursuant to statutory or procedural requirement, or under oath during civil, administrative, or criminal proceeding, in addition to written statements made in a sworn document, including affirmations made in Department and non-Department forms (Board Review 16).

PO Brown’s BWC captures an officer saying to § 87(2)(b) “That’s gay” four separate times and PO Ramos’ footage captures PO Brown referring to § 87(2)(b) as “slow.” PO Brown did not identify himself as making the disrespectful remarks regarding § 87(2)(b) perceived sexual orientation or perceived disability. However, based on PO Brown’s BWC footage, which captures his entire verbal interaction with § 87(2)(b) the proximity of PO Brown’s voice to his camera, and that PO Ramos’ BWC captured him saying, “He’s a little slow,” § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation (O) Abuse of Authority: Police Officer ANDRE BROWN interfered with § 87(2)(b) use of a recording device.

Allegation (P) Abuse of Authority: Police Officer ANDRE BROWN threatened to damage/seize § 87(2)(b) property.

§ 87(2)(b) (Board Review 05) testified that PO Brown attempted to grab § 87(2)(b) phone out of his hand but was unsuccessful.

At 02:42 of PO Brown’s BWC (Board Review 02), while at the rear of the vehicle, § 87(2)(b) shows the front of his phone screen to PO Brown. The phone shows that § 87(2)(b) is facetimeing with someone. PO Brown orders § 87(2)(b) to get off his phone. From 02:47 to 03:01, PO Brown grabs § 87(2)(b) phone and attempts to remove it from his hands. § 87(2)(b) holds on to his phone and repeats, “Give me my phone, bro.” At 03:04, § 87(2)(b) joins § 87(2)(b) at the back of the vehicle. At 03:37, PO Brown says, “Get off your phone, I’m going to slam your phone on the ground.” At 03:44, Sgt. Vassallo says to § 87(2)(b) “Put your phone in your pocket.” § 87(2)(b) asks why, and Sgt. Vassallo says, “Because you’re being detained, that’s why.” § 87(2)(b) says, “For what?” Sgt. Vassallo orders § 87(2)(b) to put his phone in his pocket and says that he will tell him the reason later

PO Brown (Board Review 11) testified that § 87(2)(b) held his phone in his hand from the time he exited the vehicle to when he walked to the rear of it. PO Brown repeatedly ordered § 87(2)(b) to put his phone away but § 87(2)(b) did not listen. While at the rear of the vehicle, § 87(2)(b) began facetimeing with an individual. PO Brown knew he was on facetime because he saw the individual’s face on § 87(2)(b) cellphone. PO Brown ordered § 87(2)(b) to put his phone away again because at that point it was a safety issue, because he was concerned that § 87(2)(b) could tell people to come to the location and that the officers would be bombarded. PO Brown did not recall if other civilians were present. PO Brown asked § 87(2)(b) to put his phone away “countless times” and he refused to do so. At one point, PO Brown grabbed § 87(2)(b) phone so that he could lock it. § 87(2)(b) pulled

away from PO Brown's reach. PO Brown did not recall if he was able to lock the phone. PO Brown did not recall if he threatened to break § 87(2)(b) phone and throw it on the ground.

PO Brown was shown his BWC footage from 03:28 to 04:15 (Board Reviews 09, 02). In the footage, PO Brown is captured saying, "I am going to slam your phone on the ground." After reviewing the footage, PO Brown did not wish to amend his testimony and did not identify the voice making that statement as his own. PO Brown did not know if it was the voice of PO Ramos or Sgt. Vassallo.

Sgt. Vassallo (Board Review 10, 24) testified that he recalled seeing § 87(2)(b) on his phone while standing at the back of the vehicle. Sgt. Vassallo stated that if someone is being detained, they cannot be on their phone because it is a safety hazard, because people can go on social media and record their location, which can result in more people coming to the location. Sgt. Vassallo stated that if more people came to the location, a crowd could form, and they could potentially be "taken over."

NYPD Administrative Guide Procedure 304-21 states that individuals have a right to lawfully observe and/or record police activity including, but not limited to, detentions, searches, arrests or uses of force. The right to lawfully observe and/or record police activity extends to individuals in public places such as streets, sidewalks, and parks, as well as private property in which the individual has a legal right to be present, such as buildings, lobbies, workplaces or an individual's own property. This right to observe and/or record police action can be limited for reasons such as the safety of officers or other member of the public, or when a violation of law is committed by the individual(s) who are observing/recording. DO NOT [emphasis in the original] command an individual cease recording when an individual is authorized to do so under law or intentionally prevent, or attempt to prevent, and individual from recording (Board Review 17).

NYPD Patrol Guide 203-29 states that officers are prohibited from intentionally blocking or obstructing cameras or other recordings devices when there is no legitimate law enforcement reason to do so (Board Review 25)

Onderdonk v. State, 170 Misc. 2d 155 found that police officers can damage property only if doing so is reasonably necessary to carry out their duties (Board Review 26).

Patrol Guide Procedure 200-02 states that in partnership with the community, members of the service pledge to protect the lives and property of our fellow citizens and impartially enforce the law (Board Review 27).

The BWC footage shows PO Brown grabbing § 87(2)(b) phone from his hand and informing § 87(2)(b) that he would slam § 87(2)(b) phone on the ground. § 87(2)(g)

§ 87(2)(b) At the time PO Brown grabbed § 87(2)(b) phone and threatened to damage it, § 87(2)(b) was standing at the rear of the vehicle and had not been issued a summons, arrested, and no officer had indicated to him that he had committed a criminal infraction. § 87(2)(g)

Allegation (O) Force: Police Officer ANDRE BROWN used physical force against § 87(2)(b)

§ 87(2)(b) (Board Review 05) testified PO Ramos told § 87(2)(b) and § 87(2)(b) that they could get back into the vehicle after he concluded his search of it. § 87(2)(b) got into the driver's seat and closed the door. § 87(2)(b) then immediately exited his vehicle because he wanted to get something to eat. As § 87(2)(b) exited the vehicle, the officers told him that he needed to stay in the vehicle and that he could not go to the store. PO Brown and Sgt. Vassallo grabbed § 87(2)(b) walked him back to the driver's seat, opened the driver side door, and tried to push § 87(2)(b) back inside the car. § 87(2)(b) told the officers that he was not going to go inside of the vehicle. § 87(2)(b) eventually sat in the driver's seat and PO Brown slammed the door.

Although § 87(2)(b) alleged that Sgt. Vassallo and PO Brown tried to push him into his vehicle, the BWC footage shows that only PO Brown made physical contact with § 87(2)(b).

PO Brown's BWC footage most clearly captured this portion of the incident (Board Review 02). At 04:31, Sgt. Vassallo tells § 87(2)(b) to have a seat back inside the vehicle. At 04:40, PO Ramos tells § 87(2)(b) he can have a seat as well. At 04:44, § 87(2)(b) walks to the driver side door, opens it briefly, closes it, and walks around the front of his vehicle. PO Brown says, "Yo, where are you going?" At 04:51, § 87(2)(b) attempts to walk past Sgt. Vassallo. Sgt. Vassallo steps in front of § 87(2)(b) to block his way. PO Brown grabs § 87(2)(b) arm and the back of his jacket and walks him to the driver side. § 87(2)(b) asks PO Brown why he had to get back into the vehicle. PO Brown opens the driver's side door. At 05:05, PO Brown holds onto § 87(2)(b) left arm and the back of his jacket from behind. § 87(2)(b) repeatedly asks why he needs to get back into the vehicle. At 05:04, PO Brown appears to push § 87(2)(b) from behind towards the driver's seat, however, § 87(2)(b) body partially obscures PO Brown's camera. Simultaneously, PO Brown says, "Why are you making this a thing?" § 87(2)(b) says, "But what am I getting in the car for?" PO Brown responds, "How are you going to leave your car here? How are you going to leave your car here?" At 05:12, § 87(2)(b) sits in the driver's seat. PO Brown slams the driver side door and the back passenger door.

PO Ramos' BWC footage capture this same portion of the incident from a different angle (Board Review 02). At 04:49, PO Ramos is searching the trunk of the vehicle. While he's searching the trunk an unidentified voice in the background yells, "What are you doing? What are you doing? He's going to the store. What are you doing?" PO Ramos moves to the side of the vehicle and captures three civilians on the sidewalk and Sgt. Vassallo blocking § 87(2)(b) from passing. PO Ramos remains at the rear of the vehicle and says, "You can't finish we're not done yet. At 05:09, § 87(2)(b) is captured standing outside of the driver's seat with PO Brown standing behind him. § 87(2)(b) asks Sgt. Vassallo, who is standing on the opposite side of the vehicle, why he has to get into the car. PO Ramos opens the trunk and simultaneously responds, "Because we're not done yet." § 87(2)(b) repeatedly asks why he has to get into the vehicle. At 05:10, PO Ramos steps to the driver's side of the vehicle where PO Brown is standing behind § 87(2)(b) at the driver's seat door. PO Ramos says, "We are not done yet. Sit down." § 87(2)(b) sits in the driver's seat. It does not appear that PO Brown pushes him into the seat.

PO Brown (Board Review 11) stated that after the vehicle was searched, § 87(2)(b) and § 87(2)(b) were ordered to get back into the vehicle. § 87(2)(b) refused to get back into the vehicle and instead walked around the front of his car and began to walk in the opposite direction towards the sidewalk. PO Brown followed § 87(2)(b) and "guided" him back to the driver's side of the

vehicle because they (the officers) had not completed the vehicle stop. PO Brown could not describe what he meant by “guide,” despite being asked numerous times. PO Brown acknowledged making physical contact with § 87(2)(b). When asked if PO Brown took § 87(2)(b) back to his vehicle forcefully, PO Brown remained that he “guided” § 87(2)(b). PO Brown did not recall if he pushed § 87(2)(b) into the vehicle.

PO Ramos’ (Board Review 09) testimony was generally consistent with his BWC footage. PO Ramos observed PO Brown grab onto § 87(2)(b) arms, escort him back to the driver’s seat, and sit him down in the driver’s seat. PO Ramos did not observe PO Brown push § 87(2)(b) into the driver’s seat.

Sgt. Vassallo (Board Review 10, 24) testified that § 87(2)(b) refused to get back into the vehicle and attempted to “walk off” in the middle of the car stop. Sgt. Vassallo ordered § 87(2)(b) to get back into the vehicle, but § 87(2)(b) continued to walk away. Sgt. Vassallo stood in front of § 87(2)(b) blocking his path, and “pleaded” with him to get back into the vehicle. Sgt. Vassallo could not recall if he made physical contact with § 87(2)(b) at that point or if PO Brown or PO Ramos assisted him at that time. Sgt. Vassallo did not observe PO Brown push § 87(2)(b) at any point.

NYPD Patrol Guide Procedure 221-01 states that force may be used when it is reasonable to ensure the safety of a member of the service of a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances (Board Review 18).

§ 87(2)(g)
[REDACTED]

Allegation (R) Abuse of Authority: Sergeant Robert Vassallo interfered with individuals' use of a recording device.

Allegation S was captured on cellphone video and not alleged by § 87(2)(b)

The cellphone video provided to the investigation by § 87(2)(b) which is 04:08 minutes in length, captures this portion of the incident (Board Review 23). At 02:03, Sgt. Vassallo turns around from escorting § 87(2)(b) to the vehicle, while holding his flashlight down, turns around, and shines his flashlight towards the recorder's phone, which obstructs any view of Sgt. Vassallo and anything behind him. At 02:24, an unidentified male wearing a blue baseball jacket, a long black shirt, light wash jeans, black sneakers, and a black baseball hat approaches the back passenger area of § 87(2)(b) vehicle while recording. Sgt. Vassallo's back is to the individual. Sgt. Vassallo turns around and shines his flashlight at the individual and says, “What are you doing? Get back.” The individual steps back.

§ 87(2)(b) did not know the name or contact information for the individual who provided him with

Sgt. Vassallo (Board Reviews 10, 24) initially did not recall if any of the bystanders attempted to walk closer to the vehicle at any point during the incident. After reviewing the cellphone video, Sgt. Vassallo stated that since it was dark outside, he used his flashlight to shine on anywhere his eyes were focused and, in this case, it happened to be on a person. Sgt. Vassallo denied that he used his flashlight to interfere with the individuals' recordings. Sgt. Vassallo stated that he "could care less if they were recording."

NYPD Patrol Guide 203-29 states that officers are prohibited from intentionally blocking or obstructing cameras or other recordings devices when there is no legitimate law enforcement reason to do so (Board Review 25)

§ 87(2)(g) The cellphone video also shows that at the time Sgt. Vassallo used his flashlight the area was not particularly dark due to the streetlights and lights from other vehicles. § 87(2)(g)

PO Brown's BWC footage, from 02:02 to 04:40, captures PO Brown saying to § 87(2)(b) "That's gay" four times and referring to § 87(2)(b) as "slow" (Board Review 02). In his May 26, 2021, statement to the CCRB, PO Brown refused to acknowledge making those statements to § 87(2)(b). PO Brown continued his denial despite being presented with BWC that documented him making the comments.

Page 12

that is essential to the determination of the issue and the suppression, omission, or alteration of such fact would reasonably result in a different decision or outcome. A material fact may be distinguished from an insignificant, trivial, or unimportant detail.” The Administrative Guide states that intentionally making a false official statement is considered prohibited conduct (Board Review 16).

As discussed in Allegations K-N, PO Brown refused to acknowledge saying to § 87(2)(b) “That’s gay” or referring to § 87(2)(b) as “slow.” However, the investigation was nonetheless able to determine that PO Brown made those statements because of his BWC footage. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- PO Brown has been a member-of-service for three years and has been a subject in one CCRB complaint and three allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
- PO Ramos has been a member-of-service for six years and this is the first CCRB complaint to which he has been a subject.
- Sgt. Vassallo has been a member-of-service for nine years and has been named a subject in 10 CCRB complaints and 44 allegations, of which six were substantiated.
 - 202003033 involved substantiated allegations of failure to provide RTKA card. The Board recommended Command Discipline B and the NYPD has not yet imposed discipline.
 - 202006059 involved substantiated allegations of failure to provide RTKA card, refusal to provide shield number, discourtesy (action), and a misleading official statement against Sgt. Vassallo. The Board recommended Charges and the NYPD has not yet imposed discipline.
 - § 87(2)(g) [REDACTED]

Mediation, Civil, and Criminal Histories

- Due to the mediation moratorium, mediation was not offered to § 87(2)(b) [REDACTED]
- As of August 1, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (Board Review 21).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

Squad: _____ 3 _____

Investigator:	Charis Jones Signature	Inv. Charis Jones Print Title & Name	06/22/2022 Date
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Squad Leader:	Tessa Yesselman Signature	IM Tessa Yesselman Print Title & Name	6/21/2022 Date
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Reviewer:	Signature	Print Title & Name	Date
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